

Second, the County does not specify all of the tests and procedures that will be conducted during the examination. The Bhambra Declaration states that the evaluation will include “symptom inventories that depend on Plaintiff’s symptoms, which would be chosen from depression, anxiety, and stress inventories,” and that Dr. Saint Martin will administer “some or all” of the following psychological tests: the MMPI-3, the MCMI-4, the PAI, and the Structured Interview of Reported Symptoms. (Bhambra Decl. ¶ 10.) The phrase “some or all” introduces ambiguity as to which tests will actually be administered, and the unnamed “symptom inventories” are not identified by name as required by *Carpenter*. The description also references a “brief cognitive evaluation” without specifying the instruments or procedures that comprise it. (*Id.*)

Finally, the County’s proposed order omits the specifically named tests altogether, describing the evaluation only as consisting of “(a) discussing Plaintiff’s view of her own personality and symptoms; (b) discussing the underlying events; (c) completing a brief cognitive evaluation to judge Plaintiff’s ability to complete written measures and her capacity for memory; (d) completing symptom inventories that depend on Plaintiff’s symptoms, which would be chosen from child depression, anxiety, and stress inventories; [and] (e) discussing the inventories with Plaintiff.” (See Proposed Or. 2.) The MMPI-3, MCMI-4, PAI, and Structured Interview of Reported Symptoms referenced in the Bhambra Declaration do not appear anywhere in the proposed order, rendering the order even less specific than the motion itself. As Plaintiff argues, these descriptions fall short of the statutory command that the motion and order describe the diagnostic tests and procedures “fully and in detail” by listing them by name, as required by *Carpenter*.
DENIED

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501793	PETRILLA, A MINOR VS DESERT SANDS UNIFIED SCHOOL DISTRICT	MOTION FOR LEAVE TO AMEND COMPLAINT OF KAYDENCE PETRILLA, A MINOR, BY AND THROUGH HER MOTHER AND GUARDIAN AD LITEM BY KAYDENCE PETRILLA, A MINOR, STEPHANIE PETRILLA

Tentative Ruling: Granted.

No opposition filed.

C.C.P. §473 authorizes the court to grant leave to amend any pleading “in furtherance of justice, and on such terms as may be proper.” A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v.*

Superior Court (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

Here, Plaintiff’s motion meets the requirements of C.R.C. 3.1324 for amended pleadings. Plaintiff is ordered to file their proposed 1st Amended Complaint within 5 days of this order becoming final.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2506387	GUERRERO VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL COMPLIANCE WITH CCP 871.26 BY HYUNDAI MOTOR AMERICA

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday August 6, 2026 at 8:30 a.m. in Department PS2.